

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 24-012
Amendments to Title 2, Chapter 4, Article B, Section 2-427
of the Chickasaw Nation Code
(Executive Department Salaries)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature finds that a need exists for the review of salaries paid elected officials of the Chickasaw Nation every four (4) years in accordance with Amendment IV, Section 11 of the Constitution of the Chickasaw Nation, and

WHEREAS, the Legislature also finds that the four (4) year periods began in 1983; therefore, the salaries paid elected officials of the Chickasaw Nation must be reviewed in Fiscal Year 2007.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 4, Article B, Section 2-247 of the Chickasaw Nation Code (additions and case changes are shown in red, deletions are stricken through). The effective date of the following amendments is October 1, 2007:

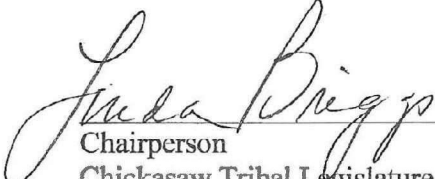
"SECTION 2-427

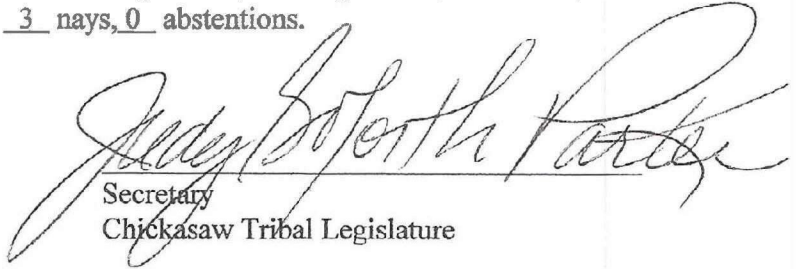
EXECUTIVE DEPARTMENT SALARIES.

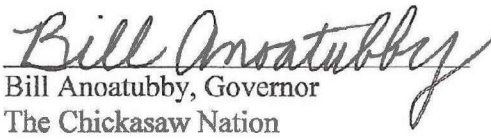
A. The salary of the Lieutenant Governor shall be the sum of ~~eighty thousand dollars (\$80,000)~~ two hundred thousand dollars (\$200,000) per annum, plus fifty thousand dollars (\$50,000) per annum for each term of office completed as Lieutenant Governor under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to ~~twenty five percent (25%)~~ thirty percent (30%) of the Lieutenant Governor's total annual salary to a retirement/investment plan, as directed by the Lieutenant Governor.

B. The salary of the Governor shall be the sum of ~~one hundred thousand dollars (\$100,000)~~ three hundred thousand dollars per annum, plus fifty thousand dollars (\$50,000) per annum for each term of office completed as Governor under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to ~~twenty five percent (25%)~~ thirty percent (30%) of the Governor's total annual salary to a retirement/investment plan, as directed by the Governor."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 21, 2007, by a vote of 10 ayes, 3 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 21 2007

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Explanation: The Chickasaw Constitution, Article VII, Section 11, as amended by Amendment IV dated September 27, 1990, provides that the Tribal Legislature shall review salaries and allowances pertaining to the elected officials of the Chickasaw Nation every fourth year. September, 2007, represents the last month of the fourth year of the cycle established in 1983.

This resolution amends that part of Title 2, Chapter 4, Article B, Section 2-427 pertaining to the base salary and retirement benefits of the Governor and Lieutenant Governor. This resolution increases the base salary of the Governor from \$100,000 to \$300,000 per year and the base salary of Lieutenant Governor from \$80,000 to \$200,000 per year. This resolution increases retirement benefits for Governor and Lieutenant Governor from 25% to 30% of their total annual salary to be paid into a retirement/investment plan, as directed by the Governor and Lieutenant Governor. Longevity pay for Governor and Lieutenant Governor remains unchanged at \$50,000 per year for each term of office completed under the Constitution of 1983.

For examples, a Governor in his first term of office would be paid the base salary (\$300,000) plus 30% of that salary (\$90,000) to be paid into to a retirement/investment plan per year; a Governor in his second term of office would be paid the base salary plus \$50,000 (\$350,000) plus 30% of that salary (\$105,000) to be paid into to a retirement/investment plan per year. A Lieutenant Governor in his first term of office would be paid the base salary (\$200,000) plus 30% of that salary (\$60,000) to be paid into to a retirement/investment plan per year; a Lieutenant Governor in his second term of office would be paid the base salary plus \$50,000 (\$250,000) plus 30% of that salary (\$75,000) to be paid into to a retirement/investment plan per year.

Presented By: Legislative Committee
Steve Woods, Committee Chair